

EASTMAN & SMITH LTD.

ATTORNEYS AT LAW

Established 1844 | Innovating Daily

November 28, 2023

Timothy J. Williams
80 Woodlake Trail
Mt. Vernon, OH 43050

Invoice # 3925825
Client # 3472
Matter # 222027
Billing Attorney: SECH

For Professional Services Rendered Through October 31, 2023

RE: Knox Cattle Company Dam

PROFESSIONAL SERVICES RENDERED

Date	Tkpr	Description of Services	Hours	Amount
10/02/23	AMVO	Continued emails and telephone calls to follow up on verifications.	1.90	285.00
10/02/23	SECH	Analyze correspondence and documents from attorney Ken Lane.	.60	414.00
10/03/23	AMVO	Continued telephone calls and emails to follow up on necessary verifications.	1.20	180.00
10/03/23	SECH	Telephone conference with Cloyd Yough regarding deposition preparation. Preparation of exhibits for Steve Mullins deposition. Preparation of deposition questions for Steve Mullins.	1.00	690.00
10/05/23	SECH	Final preparation of responses to State's discovery requests.	1.60	1,104.00
10/06/23	SECH	Conference with Cloyd Yough regarding deposition preparation; review correspondence from Assistant Attorney General Brett Kravitz complaining about response to document production requests; prepare reply to Mr. Kravitz; follow up correspondence with attorney Joe Wambaugh; prepare correspondence to Mark Long advising of status.	1.30	897.00
10/09/23	SECH	Telephone conference with Cloyd Yough's nurse at Knox Community Hospital regarding Mr. Yough's inability to appear for today's deposition; prepare correspondence to opposing counsel regarding need to postpone Mr. Yough's deposition.	.20	138.00
10/10/23	SECH	Final preparation for deposition of Steve Mullins; representation in deposition of Mr. Mullins.	8.00	5,520.00
10/11/23	SECH	Preparation of request for production of documents and request for admissions to Mullins Bros.	2.80	1,932.00

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Date	Tkpr	Description of Services	Hours	Amount
10/12/23	SECH	Review draft joint motion to continue dispositive motion deadline and accompanying proposed order; prepare requested edits to joint motion and order; correspondence with opposing counsel regarding same; further preparation of request for admissions and request for production of documents to Mullins Bros.; review and analyze subpoena issued by Mullins Bros. to attorney Kory Kidwell.	6.40	4,416.00
10/13/23	AMVO	Docket Mullins Brothers' deadline to respond to Long defendant's discovery requests.	.10	15.00
10/13/23	SECH	Preparation of status report to clients.	1.00	690.00
10/16/23	SECH	Correspondence with opposing counsel regarding rescheduling of Cloyd Yough deposition; telephone conference with Mr. Yough regarding same; correspondence with opposing counsel regarding dismissal of defendants and third-party defendants who have sold their lots, and substitution of new property owners; prepare draft Agreed Order Substituting Parties; further preparation of motion for summary judgment on State's Count I of third amended complaint, and on counterclaim against State; telephone conference with Mr. and Mrs. Rhoades regarding documentation at closing.	6.50	4,485.00
10/17/23	SECH	Review and analyze documents produced in response to subpoena to Kidwell & Cunningham law firm; prepare correspondence to Mark Long regarding same; correspondence with opposing counsel regarding rescheduling of deposition of Mr. Mullins; preparation and filing of Notice of Suggestion of Death of Crystal Tuel.	.90	621.00
10/19/23	SECH	Legal research and analysis regarding affirmative defenses of laches, estoppel, and waiver.	1.60	1,104.00
10/20/23	SECH	Preparation of affidavit of Derk Demaree to support motion for summary judgment; prepare correspondence to Cloyd Yough regarding deposition preparation.	2.80	1,932.00
10/23/23	SECH	Representation in deposition of Cloyd Yough; correspondence with opposing counsel regarding proposed agreed entry substituting parties; prepare correspondence to opposing counsel regarding rescheduling of deposition of Steve Mullins.	5.50	3,795.00
10/24/23	SECH	Preparation of affidavits of Donald Garvic, and Timothy Williams.; revision of affidavit of Derk Demaree; revision of summary judgment motion draft.	1.80	1,242.00
10/25/23	SECH	Correspondence with opposing counsel regarding Crystal Tuel's estate; revision of proposed agreed order substituting parties; correspondence with opposing counsel regarding same.	.40	276.00

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Date	Tkpr	Description of Services	Hours	Amount
10/31/23	SECH	Correspondence with attorneys Brett Kravitz and Kelli Amador regarding proposed Agreed Order Substituting Parties, and scheduling continued deposition of Steve Mullins.	.20	138.00

FEES FOR PROFESSIONAL SERVICES**\$ 29,874.00****SUMMARY OF PROFESSIONAL SERVICES**

Tkpr	Name	Hours	Total
AMVO	Angela M. Vohsing	3.20	480.00
SECH	Stephen E. Chappellear	42.60	29,394.00
	TOTALS	45.80	\$ 29,874.00

CHARGES

Date	Description	Amount
10/10/23	Parking for Steve Mullins deposition	9.00
10/23/23	Out-of-Town Travel to and from Cloyd Yough deposition in Mount Vernon, Ohio	43.23
10/28/23	Deposition Transcripts, PRI Court Reporting LLC, Steve Mullins 10/10 depo. transcript	552.90

CHARGES**\$ 605.13****INVOICE TOTAL****\$ 30,479.13**

Less Trust Applied

\$ -17,133.52**INVOICE BALANCE DUE****\$ 13,345.61**

A late charge of 1.5% per month (18% Annual Rate) will be assessed after 60 days from the date of the invoice.

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REMITTANCE ADVICE PLEASE RETURN THIS PAGE WITH PAYMENT

RE: Knox Cattle Company Dam

INVOICE BALANCE DUE

\$ 13,345.61

All checks should be made payable to:

Eastman & Smith Ltd.
ATTN: Accounts Receivable
P.O. Box 10032
Toledo, OH 43699-0032

To pay your bill online via credit card or eCheck please visit www.eastmansmith.com/remit-payment.

To pay your bill by wire or ACH please contact our Accounting Department at
accounting@eastmansmith.com.

Please reference invoice number(s) on all payments.

PAYMENT DUE UPON RECEIPT

A late charge of 1.5% per month (18% Annual Rate) will be assessed after 60 days from the date of the invoice.

If you have any questions please contact the Accounting Department at (419) 241-6000, or
accounting@eastmansmith.com.

Thank You! Your business is greatly appreciated.